

Court No. - 37

Case :- WRIT - C No. - 44600 of 2017

Petitioner :- Mewalal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Kaushal Kishor

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Rajiv Lochan Mehrotra,J.

Heard learned counsel for the petitioner.

The petitioner has come up with a clear case of denial of having applied for or taken any electricity connection and therefore he has assailed the recovery proceedings initiated for consumption of electricity which the petitioner alleges can not be a liability on the petitioner.

This is a disputed question of fact which can not be gone into in the exercise of jurisdiction under Article 226 of the Constitution of India keeping in view the nature of the controversy involved at this stage. For this fact finding process, the Statute itself prescribes the modalities under Clause 6.5 of the U.P. Electricity Supply Code, 2005 where the petitioner can approach the respondent no.2 of the area concerned who upon being apprised of the same along with a certified copy of this order shall proceed to pass an appropriate order in accordance with law within six weeks of the date of presentation of the same.

Writ petition is disposed off with the said observations.

Order Date :- 20.9.2017

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